

HOUSE No. 3644

The Commonwealth of Massachusetts

PRESENTED BY:

Mark J. Cusack

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to audit and investigate the commuter rail operating agreement.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark J. Cusack</i>	<i>5th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 3644

By Representative Cusack of Braintree, a petition (accompanied by bill, House, No. 3644) of Mark J. Cusack for legislation to authorize the Inspector General to conduct an audit and investigation into Keolis Commuter Services, LLC. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3292 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to audit and investigate the commuter rail operating agreement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, the inspector general shall
2 conduct an audit and investigation into Keolis Commuter Services, LLC’s performance under
3 commuter rail operating agreement contract no. 159-12 with the Massachusetts Bay
4 Transportation Authority. The audit and investigation shall include, but not be limited to, an
5 examination of: (i) Keolis’ compliance with the representations set forth in its proposal; (ii)
6 Keolis’ compliance with its performance and other obligations under the operating agreement,
7 including its obligations under any remedial plan or remedial agreement; (iii) Keolis’ compliance
8 with its financial obligations and covenants to the Massachusetts Bay Transportation Authority
9 under contract no. 159-12; and (iv) any relief, or waiver, of Keolis’ obligations under contract
10 no. 159-12 granted by the Massachusetts Bay Transportation Authority and the basis for such

11 relief or waiver. The inspector general shall submit a report detailing the finding of the
12 investigation and recommendations to the secretary of transportation, secretary of administration
13 and finance, general manager of the Massachusetts Bay Transportation Authority and the chairs
14 of the Joint Committee on Transportation within 90 days from the date hereof.